CHAPTER 36.

An Act to authorise the Increase of certain Pensions.
[16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Power to increase certain pensions.

1.—(1) The pensions payable to pensioners to whom this section applies, and in whose case the conditions laid down by this Act (in this Act referred to as statutory conditions) are fulfilled, may, so long as those conditions continue to be fulfilled, be increased by the pension authority by an amount not exceeding the limits laid down in the Schedule to this Act.

(2) The pensioners to whom this section applies are pensioners who at the date of the passing of this Act are in receipt of pensions granted before the fourth day of August nineteen hundred and fourteen, and, subject to the limitations laid down in Part II. of the Schedule to this Act, pensions granted on and after that date—

(*a*) under the Superannuation Acts, 1834 to 1914;

(*b*) under the Elementary School Teachers' (Superannuation) Acts, 1898 to 1912, or under the code of regulations for public elementary schools, or under the Education (Scotland) Act, 1908; 8 Edw. 7. c. 63.

(*c*) under the National School Teachers' (Ireland) Act, 1879; 42 & 43 Vict. c. 74.

(*d*) under the enactments relating to the pay and pensions of the Royal Irish Constabulary and the Dublin Metropolitan Police.

(3) The increase shall have effect as from the first day of April nineteen hundred and twenty.

Statutory conditions for increase of pension.

2. The statutory conditions for the increase of pensions under this Act are:—

(1) The pensioner must reside in the British Islands;

(2) The pensioner must have attained the age of sixty years, or have retired on account of physical or mental infirmity, or, in the case of a pensioner who is a widow and is in receipt of a pension payable in respect of the services of her deceased husband, must have attained the age of forty years;

(3) The pensioner must satisfy the pension authority that his means, including his pension, are less than one hundred and fifty pounds a year, if unmarried, or two hundred pounds a year, if married.

Application to pensioners of police, local, and public authorities.

3. The Treasury after consultation with the appropriate Government department may, by order, authorise the application of the foregoing provisions of this Act, including the Schedule therein referred to, to pensioners in receipt of pensions granted by any police, local, or other public authority, and thereupon such police, local, or other public authority shall apply such provision to pensions granted by them.

Regulations.

4. The Treasury may make regulations for carrying this Act into effect and in particular—

(*a*) for prescribing the evidence required as to the fulfilment of the statutory conditions and for defining the meaning of residence for the purposes of this Act; and

(*b*) for prescribing the manner in which claims for increases of pensions may be made and the procedure to be followed for the consideration and determination of claims; and

(*c*) for prescribing the manner in which the means of a person are to be calculated for the purposes of this Act:

Provided that, in making regulations affecting pensioners in receipt of pensions from police, local, or other public authorities, the Treasury shall act in consultation with the appropriate Government department.

Penalty for false statements, &c.

5. If for the purpose of obtaining or continuing an increase of pension—

(*a*) under this Act; or

(*b*) under any Order in Council or Royal Warrant providing for the grant of corresponding benefits to naval or military pensioners.

either for himself or for any other person, or for the purpose of obtaining or continuing such increase at a higher rate than that appropriate to the case, any person knowingly makes a false statement or false representation, he shall be liable on summary conviction to imprisonment for a term not exceeding six months and, in the case of a pensioner, to forfeit any pension or increase of pension payable to him.

Provisions as to special Greenwich Hospital pensions.
32 & 33 Vict c. 44.
61 & 62 Vict. c. 21.

6. Any increase in a pension granted under any Order in Council for the grant of such corresponding benefits as aforesaid to naval or military pensioners shall not be taken into account in determining the amount of, or eligibility for, a special Greenwich Hospital pension under section five of the Greenwich Hospital Act, 1869, as amended by section four of the Greenwich Hospital Act, 1898.

Interpretation.

7.—(1) For the purposes of this Act—

The expression "pension authority" means the Treasury or other authority by whom a pension is granted.

The expression "married person" includes a widower or widow with one or more children under sixteen years of age dependent on him or her, and the expression "unmarried person" includes a widower or widow having no such children.

The expression "means" in the case of a married person includes the means of both husband and wife.

The expression "naval or military pensioner" means a person formerly in the naval or military service of the Crown who is in receipt of a pension in respect of such service, or the widow of such a person who is in receipt of a pension in respect of the naval or military service of her deceased husband.

The expression "prescribed" means prescribed by regulations under this Act.

(2) This Act shall not apply to any pension or part of a pension which has been commuted.

8. This Act may be cited as the Pensions (Increase) Act, 1920. Short title.

SCHEDULE.

Sections 1. and 3.

Part I.

Limitations on the Amount of Increase of Pensions.

1. Where the existing pension does not exceed 50*l*. a year -	it may be increased by 50 per cent.
Where the existing pension exceeds 50*l*. a year, but does not exceed 100*l*. a year in the case of an unmarried person or 130*l*. a year in the case of a married person - - - - -	it may be increased by 40 per cent.
Where the existing pension exceeds 100*l*. a year, but is less than 150*l*. a year in the case of an unmarried person, or exceeds 130*l*. a year, but is less than 200*l*. a year in the case of a married person - - - -	it may be increased by 30 per cent.

Provided that—

(i) if the amount to which a pension may be increased under the above scale is less than the amount to which a smaller pension might be increased, it may be increased to the latter amount;

(ii) no pension shall be increased by an amount greater than is sufficient to bring the total means of the pensioner, including the increased pension up to 150*l.* a year in the case of an unmarried person, or 200*l.* a year in the case of a married person.

2. Where a pensioner is in receipt of two pensions to which section one of this Act applies or of one such pension and of a pension as a naval or military pensioner, such pensions shall, for the purposes of the above scale, be treated as one pension of an amount equal to the aggregate amount of the two pensions.

3. Where before the passing of this Act a pension has, since the grant thereof, been increased, the increase authorised under this Act shall be calculated on the original amount of the pension, and the amount by which it may be increased under this Act shall be reduced by the amount of the increase so previously granted.

PART II.

ADDITIONAL LIMITATION ON INCREASE OF PENSIONS GRANTED AFTER THE 4TH DAY OF AUGUST 1914.

3. Where an existing pension granted on or after the 4th day of August 1914, is larger than a pre-war pension by reason of an improvement in the pension scale or an increase in the pensionable emoluments made since that date, the pension shall not be increased under this Act by an amount greater than is sufficient to make the increased pension equal to the amount to which the pre-war pension might have been increased under Part I. of this Schedule.

CHAPTER 37.

An Act to provide for raising further Money for the purpose of the Telegraph Acts, 1863 to 1916, and to amend section four of the Telegraph (Money) Act, 1876. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Grant for purposes of Telegraph Acts.

1.—(1) The Treasury may, with a view to the development of the telephonic system in the United Kingdom, without prejudice to the exercise of any powers previously given for the like purpose, issue out of the Consolidated Fund, or the growing produce thereof, such sums not exceeding in the whole the sum of ten million pounds, as may be required by the Postmaster-General for the purpose of developing the telephonic system according to estimates approved by the Treasury.